

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Paul M. Gamble, Department Advocate's Office, September 4, 2024. Contents noted. Recommend approval of the negotiated global plea agreement in DADS Nos. 2022-25276 and 2023-26279 against Police Officer Brian Ramirez, Tax Registry No. 946143. The case was conferenced on August 20, 2024, before Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of a forfeiture of Thirty (30) vacation days after Police Officer Ramirez's plea of guilty in both matters.

Andre Applewhite

Andre Applewhite

Chief Prosecutor APU

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-25276

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RAMIREZ	FIRST BRIAN	M.I.	COMMAND PBBN SPECIALIZED UNITS
SHIELD NO. 22014	TAX REGISTRY NO. 946143	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

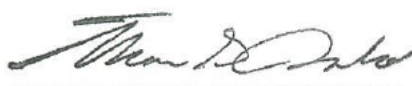
SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Brian RAMIREZ, on or about March 14, 2020, at approximately 2140, while assigned to PBBN SU and on duty, in the vicinity of Ralph Avenue and Fulton Street, Kings County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 30.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Brian RAMIREZ, on or about March 14, 2020, at approximately 2140, while assigned PBBN SU and on duty, in the vicinity of Ralph Avenue and Fulton Street, Kings County, abused his authority as a member of the New York City Police Department, in that he drew his gun without police necessity.	PLEADED GUILTY	
3 . Police Officer Brian RAMIREZ, on or about March 14, 2020, at approximately 2140, while assigned to PBBN SU and on duty, in the vicinity of Ralph Avenue and Fulton Street, Kings County, abused his authority as a member of the New York City Police Department, in that he stopped an individual without sufficient legal authority.	PLEADED GUILTY	
4 . Police Officer Brian RAMIREZ, on or about March 14, 2020, at approximately 2140, while assigned to PBBN SU and on duty, in the vicinity of Ralph Avenue and Fulton Street, Kings	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER

10/10/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

11/20/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25276
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RAMIREZ	FIRST BRIAN	M.I.	COMMAND PBBN SPECIALIZED UNITS
SHIELD NO. 22014	TAX REGISTRY NO. 946143	SOCIAL SECURITY NO.		DATE APPOINTED 01/07/2008
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
County, abused his authority as a member of the New York City Police Department, in that he frisked an individual without sufficient legal authority. 5 . Police Officer Brian RAMIREZ, on or about March 14, 2020, at approximately 2140, while assigned to PBBN SU and on duty, in the vicinity of Ralph Avenue and Fulton Street, Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide an individual with a business card without sufficient legal authority.	PLEADED GUILTY	

DC Bradino 10/10/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Thomas De Santis 11/20/24
POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26279
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RAMIREZ	FIRST BRIAN	M.I.	COMMAND PBBN SPECIALIZED UNITS
SHIELD NO. 22014	TAX REGISTRY NO. 946143	SOCIAL SECURITY NO.		DATE APPOINTED 01/07/2008
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Brian RAMIREZ, on or about August 11, 2021, at approximately 1153, while assigned to PBBN SU, and on duty in the vicinity of CCRB, 100 Church Street, New York County, provided a misleading statement to CCRB in that, after reviewing his BWC footage, he denied stopping § 87(2)(b) or searching him.	PLEADED GUILTY	VACATION DAYS 30.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Burris
FIRST DEPUTY COMMISSIONER

10/10/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Thomas DeStefano
POLICE COMMISSIONER

11/20/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, October 4, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case Nos. 2022-25276 and 2022-26279 against Police Officer Brian Ramirez, Tax No. 946143 (CCRB Case Nos. 202002456 and 202003377), with the recommendation that Police Officer Ramirez forfeit thirty (30) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur.

Additionally, it must be noted that during the pendency of the underlying case, Police Officer Ramirez also negotiated to resolve a separate matter under Disciplinary Case No. 2022-27436, with the recommendation that Police Officer Ramirez forfeit thirty (30) vacation days. These settlements were negotiated with the expectation that the penalties in Disciplinary Case Nos. 2022-25276 and 2022-26279 are to run concurrently with Disciplinary Case No. 2022-27436. Therefore, the undersigned recommends that the penalties in these disciplinary cases be applied concurrently and that Police Officer Ramirez forfeit a combined total of thirty (30) vacation days in Disciplinary Case Nos. 2022-25276, 2022-26279 and 2022-27436. **RECOMMEND APPROVAL.**



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

TIK/jpc



APPROVED

NOV 20 2024



THOMAS G. DONLON
POLICE COMMISSIONER